

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1031

Introduced by Dorn, 30.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Hospital Quality Assurance and Access
- 2 Assessment Fund; to require appropriations; and to state intent
- 3 regarding rates.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) The Legislature shall appropriate one million five
2 hundred thousand dollars for fiscal year 2025-26 and one million five
3 hundred thousand dollars for fiscal year 2026-27 from the Hospital
4 Quality Assurance and Access Assessment Fund to the Department of Health
5 and Human Services for the medical assistance program to be used to
6 provide reimbursement to mental health providers who do not practice in a
7 hospital and who provide behavioral health services to medicaid-eligible
8 participants who are dually eligible beneficiaries that are eligible for
9 both medicaid and medicare. For dual eligible recipients, the higher
10 medicaid or medicare rate shall be paid for behavioral health services.
11 (2) It is the intent of the Legislature to sustain the medicaid
12 rates for mental health providers serving medicaid-eligible participants
13 who are dually eligible beneficiaries that are eligible for both medicaid
14 and medicare and who are receiving behavioral health services under the
15 medical assistance program.